

Gulam Mustafa Siddiqui v. State of U.P. & Anr.

High Court of Judicature at Allahabad · Division Bench · 20 May 2022 · WRIT - C No. - 31605 of 2021 · **Writ disposed of; relegated to para 6.8 objection with limited stay of coercive action.**

HEADNOTE

A writ attacking Purvanchal Vidyut Vitran Nigam's 1 September 2021 final assessment was disposed of without a merits ruling. The consumer was left to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing preferably within the next four weeks, with coercive recovery stayed for eight weeks or until that disposal, whichever is earlier.

FACTUAL SUMMARY

Gulam Mustafa Siddiqui challenged the 1 September 2021 final assessment of the Executive Engineer, Vidyut Vitran Khand-II, Purvanchal Vidyut Vitran Nigam Limited, George Town, Prayagraj, seeking certiorari and a mandamus not to enforce it, on the ground that it was passed in breach of statute and natural justice. After two 6 December 2021 listing orders, the Division Bench heard the parties. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to final assessment as alternate remedy

HOLDING

Without expressing any opinion on merits, a writ challenging a licensee's final assessment is disposed of by giving the consumer liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, the licensee shall decide it in accordance with law, expeditiously, preferably within the next four weeks after a reasonable opportunity of hearing, and no coercive action on the impugned demand shall be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 3

FLAG Court directed an 'objection under Para 6.8' against a final assessment; 6.8(d) appeal not specified.

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against a final assessment disposed of by relegating the consumer to a para 6.8 objection, without a merits grant or refusal. ¶ 3

assessment-6.8-alternate-remedy Licensee having stated that an objection to the demand would be decided in a time-bound manner, the Court directed a para 6.8 objection with a short stay of coercive recovery. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 1 SEPTEMBER 2021 FINAL ASSESSMENT AND ALLEGED BREACH OF NATURAL JUSTICE

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 3